

Complaint Report (CCRB)

CCRB Case No :	201810168	C/V Report Date :	Thu, 12/06/2018 03:33 PM
Complaint Type :	CCRB	Investigator :	Patrick Yu
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Thu, 12/06/2018 03:33 PM	Mode :	Phone
Incident Date(s) :	Tue, 12/04/2018 3:20 PM		
Place of Occurrence:	[REDACTED]	Precinct:	44
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	PD suspected C/V of violation/crime - street		
Charges:	Arrest - other violation/crime		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Injury Details:	<u>Type of Injury</u>	<u>Description</u>
	Fracture	Fractured right jaw.

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
DT3	Anthony Disimone	Subject Officer	[REDACTED]	White	730	Radio as club - (F) Unsubstantiated
	Officers	Subject Officer	[REDACTED]			Physical force - (pushed/shoved/threw) - (F) Unsubstantiated
	Officers	Subject Officer	[REDACTED]			Physical force - (punched/kicked/kneed) - (F) Unsubstantiated

	An officer	Subject Officer	[REDACTED]			Word - (D) Officer(s) Unidentified
DT3	David Demelia	Subject Officer	[REDACTED]	White	730	Hit against inanimate object - (other) - (F) Unsubstantiated
DT3	David Demelia	Subject Officer	[REDACTED]	White	730	Physical force - (punched/kicked/kneed) - (F) Unsubstantiated
DT3	Robert Jaquez	Subject Officer	[REDACTED]	Hispanic	730	Physical force - (pushed/shoved/threw) - (F) Unsubstantiated
DT3	Jodi Brown	Subject Officer	[REDACTED]	Black	730	Physical force - (punched/kicked/kneed) - (F) Unsubstantiated
DT3	Jodi Brown	Subject Officer	[REDACTED]	Black	730	Word - (D) Unsubstantiated
	Undercover shield number 373	Witness Officer	[REDACTED]			
DT3	Irie Humphrey	Witness Officer	[REDACTED]	Black	730	
DT3	Roberto Toribio	Witness Officer	[REDACTED]	Hispanic	730	
DT3	Abdiel Anderson	Witness Officer	[REDACTED]	Hispanic	730	
DT3	Mark Oconnell	Witness Officer	[REDACTED]	White	730	

Initial Complaint Narrative

On Thursday, December 6, 2018, [REDACTED] called the CCRB to file this complaint. On Tuesday, December 4, 2018, between 5:45 p.m. and 6:00 p.m., at [REDACTED] in the Bronx, [REDACTED] used his iPhone X to record his friend, [REDACTED]'s arrest. About six to seven police officers were present. While [REDACTED] was on the ground, an unidentified male police officer (PO 1) used his police radio to hit [REDACTED] in the face while two other unidentified male police officers (PO 2, PO 3) kicked him. [REDACTED] sustained a fractured right jaw. As [REDACTED] was recording [REDACTED]'s arrest, one of the officers approached [REDACTED]. In response, [REDACTED] pointed his phone towards the officer. One of the officers "jumped" [REDACTED] and attempted to break his phone. Another officer grabbed [REDACTED] threw him on the ground, and bent his arms back to handcuff him. [REDACTED] stated that the officers were pushing and pulling him while on the ground. The officers pulled [REDACTED] by his neck or hoody collar and then they held his arms as they lifted him up. Approximately three officers pushed him forward towards the police van. The officers grabbed [REDACTED] neck and pushed his head down while they held both of his arms as they were walking towards the police van. Both [REDACTED] and [REDACTED] were placed in a black van then driven to the 44th Precinct stationhouse. [REDACTED] went to the Bronx Central Booking and was released the next day, December 5, 2018, at approximately 8:30 p.m. [REDACTED]'s arrest status is not known. The police department is holding [REDACTED] iPhone for an investigation. [REDACTED] was charged with disorderly conduct, harassment, and possession of a controlled substance. [REDACTED] acknowledged that he had one pill of Oxycodone (prescribed medication). [REDACTED] stated that the officer who handcuffed him was a Hispanic man, approximately 33 years old, 5'9" tall, short, black hair, styled, Cesar cut, wore a Nike red hoody, dark jeans. PO 1: African American man, bald, 38 to 41 years old, 6'3" tall, 220 to 230 pounds. Wore blue jeans, black sneakers, black hoody, and black skull. PO 2: white man, bald, 47 years old. Wore blue shirt and hoody, blue dark denim jeans. PO 3: African American or Hispanic man, bald, mid-40 to 45 years old, 6'1" tall, light blue jeans, black hoody, and skull.

Witness